

26PR00309 Estate of Mary Etta Hall

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-11

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Mary Etta Hall

Case Number

26PR00309

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/11/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

The following must be submitted:

Supplement re: Venue. The Petition alleges at paragraph 3 that the Decedent was a resident of La Mesa, CA (San Diego County) at the time of death. This makes venue in Santa Barbara County improper.

Probate Code section 7051 outlines venue in probate matters as follows:

If the decedent was domiciled in this state at the time of death, the proper county for proceedings concerning administration of the decedent's estate is the county in which the decedent was domiciled, regardless of where the decedent died.

(Emphasis added.) Only if the decedent was not domiciled in this state could proper venue lie in a county where Decedent's property was located. (Prob. Code, §7052.)

Supplement is required, with Points and Authorities that show the Court how venue is proper in this county.

Trust Instrument. The Petition and/or accompanying documents reveal the existence of a trust. A copy of the trust, and all accompanying amendments, must be submitted for review, to ensure compliance with the Decedent's testamentary intent and notice to individuals who might otherwise not be given notice. (Local Rule, 1791(c).)

Original Will. An original will and any codicil to that will must be lodged with the Court. (Prob. Code, §§ 8200, et seq.) It is insufficient to attach a copy of the will to the petition without lodging the original.

If the will is holographic, "the petitioner shall also attach a typed copy of the will." (Prob. Code, §8002(b)(1).) No typed copy of the will was submitted.

If the original is lost, petitioner must amend the Petition to provide an attachment alleging why the presumption of destruction in Probate Code section 6124 should not apply, or provide evidence overcoming the presumption of destruction.

Petitioner may overcome this presumption with substantial evidence that shows the Court some supported fact that the Decedent did not destroy the will. Petitioner is referred to the following authority to understand the evidence required to overcome the presumption of destruction in Probate Code section 6124:

Estate of Trikha (2013) 219 Cal.App.4th 791, 804 [substantial evidence required to overcome presumption]

Lauermann v. Superior Court (2005) 127 Cal.App.4th 1327, 1333 [Duplicate Original not usually sufficient]

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 10, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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